

ASCI Advertising Standards (4)

Title: No Misleading Claims Through Omission or Ambiguity

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter I Honest Representations, Clause 1.2

Plain English Summary:

An advertisement must not mislead consumers through **omission, ambiguity, or exaggerated presentation**, even if the individual statements in the advertisement are technically true. For an Ayurvedic startup, important qualifications or limitations attached to a health or product claim should not be hidden or presented in a way that creates a misleading impression.

The Exact Legal Text:

ASCI Code, Chapter I, Clause 1.2:

Advertisements must not contain statements or visual presentation which directly or by implication, omission, ambiguity or exaggerated claim are likely to mislead the consumer.

Keywords/Triggers:

misleading by omission, ambiguous advertising, exaggerated advertising claims, Ayurvedic advertising, misleading visual claims, consumer deception, ASCI Clause 1.2, health claim disclosure

ASCI Code Truthfulness of Claims

Title: Truthfulness and Accuracy of Advertising Claims

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter I Honest Representations, Clause 1.4

Plain English Summary:

Advertising claims should be presented in a way that gives consumers a truthful and accurate understanding of the product. For an Ayurvedic startup, claims about a product's properties, benefits, composition, performance, or results should not create an impression that is materially different from what the product can actually deliver.

The Exact Legal Text:

ASCI Code, Chapter I, Clause 1.4:

Advertisements shall not mislead by means of implications, ambiguity, or exaggerated claims.

Keywords/Triggers:

truthful advertising, accurate product claims, Ayurvedic claims, implied claims, ambiguous claims, exaggerated claims, advertising accuracy, ASCI Clause 1.4

ASCI Code Material Facts and Consumer Understanding

Title: Disclosure of Material Facts and Consumer Understanding

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter I Truthful & Honest Representation, Clauses 1.4 and 1.5

Plain English Summary:

Advertisements should disclose material facts where hiding or distorting them could mislead consumers. Advertisements should also be designed so they do not exploit a consumer's lack of knowledge or understanding. For an Ayurvedic startup, important conditions, limitations, or qualifications affecting a product claim should therefore not be concealed or presented in a confusing manner.

The Exact Legal Text:

ASCI Code, Chapter I, Clause 1.4:

Advertisements should disclose all material facts, which if suppressed or distorted, would mislead the consumer by implication or omission.

ASCI Code, Chapter I, Clause 1.5:

Advertisements should be framed in such manner as to gain consumer trust, and not exploit his/her lack of understanding or knowledge.

Keywords/Triggers:

material facts disclosure, misleading by omission, consumer understanding, consumer trust, Ayurvedic advertising disclosure, hidden conditions, ASCI Clause 1.4, ASCI Clause 1.5

ASCI Code Humorous or Hyperbolic Claims

Title: Permitted Humorous and Hyperbolic Claims

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter I Honest Representations, Clause 1.6

Plain English Summary:

Obvious exaggerations may be used to amuse or attract consumers when they are clearly understood as **humour or hyperbole** and are not likely to be interpreted as literal product claims. For an Ayurvedic startup, playful statements such as exaggerated marketing language are acceptable only when consumers would not reasonably understand them as factual claims about the product's efficacy or benefits.

The Exact Legal Text:

ASCI Code, Chapter I, Clause 1.6:

Obvious untruths or exaggerations intended to amuse or to catch the eye of the consumer are permissible, provided that they are clearly to be seen as humorous or hyperbolic, and not likely to be understood as making literal or misleading claims for the advertised product.

Keywords/Triggers:

advertising exaggeration, hyperbolic claims, humorous advertising, puffery, Ayurvedic marketing claims, literal claims, misleading exaggeration, ASCI Clause 1.6

ASCI Code Claims Requiring Qualification

Title: Qualification and Disclaimer of Advertising Claims

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter I Honest Representations, Clause 1.7

Plain English Summary:

Where an advertising claim needs a qualification or disclaimer to prevent consumers from being misled, that qualification should be presented clearly enough for consumers to understand it. For an Ayurvedic startup, disclaimers attached to efficacy, performance, or other claims should not be hidden, unreadable, or presented in a way that defeats the main claim.

The Exact Legal Text:

ASCI Code, Chapter I, Clause 1.7:

Disclaimers qualifying or limiting a claim made in an advertisement should be presented in such a manner that they are clearly visible, legible and understandable to the consumer.

Keywords/Triggers:

advertising disclaimer, claim qualification, readable disclaimer, Ayurvedic health claim disclaimer, disclaimer visibility, misleading disclaimer, ASCI Clause 1.7, claim limitation